

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #11	CCRB Case #: 201808033	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 09/20/2018 5:26 PM	Location of Incident: 221 Saint Anns Avenue	18 Mo. SOL 11/4/2020	Precinct: 40
Date/Time CV Reported Thu, 09/20/2018 7:42 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/27/2018 11:03 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jamar Lamey	04087	946508	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Argenis Betanco	08617	963401	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jamar Lamey	Discourtesy: Sergeant Jamar Lamey acted discourteously toward § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) called IAB on September 20, 2018 and filed the following complaint, generating log number 18-36986. The complaint was received at the CCRB on September 27, 2018. § 87(2)(g)

On September 20, 2018, at approximately 5:26 p.m., § 87(2)(b) called 911 to report that she was struck in the head by unidentified individuals running down the block as she stood in front of 221 Saint Anns Avenue in the Bronx. Sergeant Jamar Lamey and Police Officer Argenis Betanco arrived at the location at approximately 7:00 p.m. § 87(2)(b) complained about the delay and tried telling Sgt. Lamey what happened but she did not like his demeanor and stance. After arguing with Sgt. Lamey over his body language, Sgt. Lamey and PO Betanco returned to their vehicles and § 87(2)(b) followed. Sgt. Lamey then allegedly displayed his middle finger at § 87(2)(b) after he sat in the police vehicle (**Allegation A – Discourtesy: Unsubstantiated**).

There are two videos from Sgt. Lamey and PO Betanco's body worn cameras associated with this case but they do not capture the moment of the allegation (Board Review 01, 02).



201808033_20181015_1353_DM.AVI



201808033_20181015_1354_DM.AVI

Findings and Recommendations

Allegation A – Discourtesy: Sergeant Jamar Lamey acted discourteously towards § 87(2)(b)

§ 87(2)(b) called 911 to report that a group of unidentified individuals ran past her and struck her in the head. Officers arrived approximately two hours later. § 87(2)(b) argued with them about their response time. Sgt. Lamey listened to her story, but § 87(2)(b) told him that she felt like he was mocking her by laughing and did not like his body language. Sgt. Lamey replied that § 87(2)(b) had made racial comments against him upon arrival. § 87(2)(b) denied that she made any racial comments during the interaction. As Sgt. Lamey and PO Betanco walked back to their vehicle, § 87(2)(b) followed them and took a photo of Sgt. Lamey. After Sgt. Lamey got into the vehicle, he displayed his middle finger at § 87(2)(b) and the officers left the scene.

According to Sgt. Lamey, upon arrival, § 87(2)(b) yelled and was angry that it took them too long to respond. § 87(2)(b) called Sgt. Lamey a “black piece of shit” and an “asshole.” Sgt. Lamey exited the vehicle and turned on his body worn camera and told PO Betanco to do so as well. § 87(2)(b) refused medical attention and continued to argue with officers about their response time. § 87(2)(b) made what Sgt. Lamey believed to be racial comments, calling him a “thug.” Sgt. Lamey deemed § 87(2)(b) uncooperative when she would not provide the details of the incident to prepare a complaint report. Sgt. Lamey and PO Betanco returned to their vehicle and he denied displaying his middle finger at § 87(2)(b) at any moment.

PO Betanco's statement was consistent with Sgt. Lamey.

Sgt. Lamey and PO Betanco's body camera footage ends when they enter their vehicle and does not capture Sgt. Lamey's hands or what he did when the car pulled away from the scene. Sgt. Lamey and PO Betanco deny that a middle finger was displayed at § 87(2)(b) § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 03).
- Sgt. Lamey has been a member of service for 11 years and has been a subject in two prior CCRB complaints and three allegations, of which none were substantiated.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A Notice of Claim FOIL request was sent to the Office of the New York City Comptroller on January 17, 2019 and the results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date